



MAKANA UNITED CIVIC MOVEMENT

Business Reg No: 2026 / 173788 / 08

16 Bathurst Street/67 African Street, Makhanda

CONSTITUTION OF THE MAKHANDA UNITED CIVIL MOVEMENT

A COMPREHENSIVE LEGAL FRAMEWORK FOR COMMUNITY GOVERNANCE

PREAMBLE

We, the people of Makhanda (formerly Grahamstown), in the Eastern Cape Province of the Republic of South Africa acknowledge that Grahamstown used to be one of the most important towns in South Africa Known as the education hub because of housing many academic institutions such as all the schools and Rhodes University it used to have well maintained, functioning infrastructure.

With the advent of democracy in 1994, everything changed for the worse for Grahamstown (Makhanda).

Service delivery issues started to deteriorate materially and by 2018 the deterioration affected all residents especially in the township where residents were not able to afford water tanks and solar systems to compensate for the, at times, complete failure of water and electricity supply.

Rhodes University was losing students as parents were no longer sending their children to study at Rhodes University given the harsh conditions in which their children had to live and study.

The schools have been just as seriously compromised.

The Makana Municipality (formerly Grahamstown Municipality) created this bleak picture for all the people in Makhanda through incompetency and corruption which has resulted in the collapse of essential services.

Over the past 7 years, Makana Municipality has had 7 Audit Disclaimers issued by the Auditor General and is one of multiple key South African municipalities who cannot account for their finances, nor account for the lack of service delivery to their residents.

In view of the above, it is critical for all Makhanda (Grahamstown) residents to take ownership of their town by spearheading an alternate government outside the political arena.

This vision led to the establishment of the Makana United Civil Movement. Makhanda (MUCM).

The MUCM believes Makhanda (Grahamstown) can be restored to prosperity through unity, accountability, and ethical governance.

Recognizing that the municipality has failed in its constitutional obligations to provide basic services and maintain infrastructure, and that corruption, maladministration, and incompetence have devastated our

community's social and economic fabric, the MUCM has been established as an instrument of transformative governance grounded in the rule of law.

We acknowledge our responsibility to establish a society based on democratic values, accountability, and fundamental human rights.

We commit ourselves to building a united, prosperous and sustainable Makhanda that respects the dignity of all persons and provides equal opportunities for human development for all its residents:

A non-profit and non-political organization not aligned with any political organization that will only stand for local government election in the Makhanda district.

A non-racial organization – all the people of Makhanda will form a united front to rescue Makhanda from its misery.

A non-membership organization – by being a resident of Makhanda, you are invited to be part of this organization.

The MUCM Constitution is founded upon the following supreme values:

- Human dignity, equality of opportunity and freedom
- Non-racialism and non-sexism
- Supremacy of the Constitution and rule of law
- Universal adult suffrage and accountable government
- Ubuntu and collective responsibility
- Transparency, integrity and ethical leadership
- Sustainable development and environmental protection
- Ethical, honest and leadership with integrity

We adopt this Constitution as the supreme law of the Makhanda United Civil Movement.

Law and conduct inconsistent with this Constitution is invalid, and the obligations imposed by this Constitution will be fulfilled.

CHAPTER 1: FOUNDATIONAL PROVISIONS

Article 1: Establishment and Legal Status

1.1 Name and Identity (a) The organization shall be known as the "Makhanda United Civic Movement" (hereinafter "the Movement" or "MUCM"). (b) The Movement may use the Xhosa name "iNtshukumo yoluntu lwaseMakhanda" and the Afrikaans name "Makhanda Verenigde Burgerlike Beweging" as official translations.

1.2 Legal Personality (a) The Movement is established as a juristic person in terms of the Non-Profit Organizations Act 71 of 1997. (b) The Movement has perpetual succession and may sue and be sued in its own name. (c) The Movement may acquire, hold, and dispose of property, both movable and immovable. (d) The Movement shall register as a Public Benefit Organization in terms of the Income Tax Act 58 of 1962.

1.3 Territorial Jurisdiction (a) The Movement operates within the municipal boundaries of Makana Local Municipality, Eastern Cape Province. (b) The Movement may establish partnerships with organizations in adjacent municipalities for regional development purposes.

Article 2: Constitutional Supremacy

2.1 Supreme Law (a) This Constitution is the supreme law of the Movement. (b) No law, policy, decision, or conduct of the Movement or its representatives may be inconsistent with this Constitution.

(c) Any law, policy, decision or conduct inconsistent with this Constitution is invalid to the extent of such inconsistency.

2.2 Binding Nature (a) This Constitution binds all structures, representatives, employees and affiliates of the Movement. (b) All persons exercising authority under this Constitution will act in accordance with its provisions. (c) The Constitution creates justiciable rights and obligations enforceable through the courts of law.

2.3 Constitutional Interpretation (a) This Constitution will be interpreted in a manner that: (i) Promotes democratic governance and accountability (ii) Advances human dignity, equality, and freedom (iii) Gives effect to the rights and obligations it contains (iv) Is consistent with international law and the Constitution of South Africa (b) Foreign law may be considered in constitutional interpretation. (c) Courts will prefer reasonable interpretations that are consistent with international law.

Article 3: Vision, Mission and Objects

3.1 Vision To establish Makhanda as a model of ethical, accountable, and effective local governance that ensures human dignity, promotes social and economic development and creates a sustainable future for all residents.

3.2 Mission To provide transparent, participatory and professional local governance that prioritizes service delivery, human development, economic growth and environmental sustainability while fostering unity, non-racialism and social justice.

3.3 Primary Objects The Movement is established to: (a) Contest municipal elections and provide effective local government representation (b) Ensure universal access to basic services including water, sanitation, electricity, waste management and healthcare (c) Develop, maintain and upgrade municipal infrastructure to international standards (d) Promote sustainable economic development and reduce unemployment and poverty (e) Advance education, skills development and human capital formation (f) Ensure public safety, security and access to justice (g) Protect and enhance the natural environment and promote sustainable development (h) Foster social cohesion, reconciliation and nation-building (i) Combat corruption, maladministration, and abuse of power (j) Promote transparency, accountability, and public participation in governance

3.4 Ancillary Objects The Movement may also: (a) Establish partnerships with government, civil society and private sector organizations (b) Conduct research, advocacy and public education activities (c) Provide training and capacity building for community leaders (d) Mobilize resources for community development projects (e) Engage in any lawful activity that advances its primary objects

CHAPTER 2: BILL OF RIGHTS FOR MAKHANDA RESIDENTS

Article 4: Application of Rights

4.1 Universal Application (a) This Bill of Rights applies to all residents within the territorial jurisdiction of the Movement. (b) Rights apply to all natural persons and, where applicable, to juristic persons. (c) The Movement will respect, protect, promote and fulfill the rights in this Bill of Rights. The movement is a non-membership organization – by being a resident of Makhanda, you are considered part of this organization.

4.2 Limitation of Rights (a) Rights may only be limited by law of general application to the extent that such limitation is reasonable and justifiable in an open and democratic society based on human dignity, equality, the rule of law and freedom. (b) No right may be limited in a manner that negates its essential content. (c) The limitation will be proportionate to the legitimate purpose sought to be achieved. (d) Each leader and member of this movement will be accountable to the people of Makhanda and limited by the direct democratic principles of transparent accountability.

Article 5: Fundamental Rights Ensconced in The Constitution of the Republic of South Africa, 1996

5.1 Human Dignity (a) Every resident has inherent dignity and the right to have such dignity respected and protected. (b) No resident may be subjected to degrading treatment or punishment.

5.2 Equality and Non-Discrimination (a) All residents are equal before the law and entitled to equal protection and benefit of the law. (b) The Movement will not unfairly discriminate against any resident on grounds of race, gender, pregnancy, marital status, ethnic or social origin, color, sexual orientation, age, disability, religion, conscience, belief, culture, language or birth. (c) The Movement will take positive measures to form a united front to rescue Makhanda from its misery without consideration of race, gender, pregnancy, marital status, ethnic or social origin, color, sexual orientation, age, disability, religion, conscience, belief, culture, language or birth.

5.3 Life, Liberty and Security (a) Every resident has the right to life, liberty, and security of person and property. (b) No resident will be deprived of freedom or property arbitrarily or without just cause. (c) Every resident has the right to freedom from all forms of violence and to personal safety and security under the law of South Africa.

5.4 Privacy Every resident has the right to privacy, including protection against unreasonable searches, surveillance and disclosure of personal information.

Article 6: Political Rights

6.1 Democratic Participation (a) Every adult resident has the right to participate in political activities and to form or join political organizations outside of the Movement and the Movement does not preclude political affiliation whatsoever. (b) Every adult citizen has the right to vote in municipal elections and to be elected to municipal office outside of the Movement. (c) Every resident has the right to participate in peaceful political activity and to campaign for a political party or cause outside of the Movement. (d) Under the banner of the Movement, vetting by will be performed to see whether the incumbent is fit for purpose to serve as a councillor representative as part of the Movement.

6.2 Freedom of Expression (a) Every resident has the right to freedom of expression, including freedom of the press and media and freedom to receive or impart information. (b) This right does not extend to propaganda for war, incitement to violence or advocacy of hatred based on prohibited grounds that constitutes incitement to cause harm.

6.3 Assembly and Association (a) Every resident has the right to peaceful assembly and demonstration. (b) Every resident has the right to freedom of association.

Article 7: Socio-Economic Rights

7.1 Basic Services (a) Every resident has the right to access adequate water supply, sanitation, electricity, waste management, and emergency services under South African Law. (b) The Movement will take reasonable legislative and other measures, within available resources, to achieve progressive realization of these rights.

7.2 Housing and Shelter (a) Every resident has the right to adequate housing and protection from arbitrary eviction. (b) The Movement will facilitate access to affordable housing and prevent homelessness.

7.3 Health Care (a) Every resident has the right to access health care services. (b) Every resident has the right to a healthy environment that is not harmful to their health or well-being.

7.4 Education (a) Every resident has the right to basic education, including adult basic education. (b) Every resident has the right to further education which the Movement will endeavour to make progressively available and accessible. (c) Education will be provided in official languages where reasonably practicable.

7.5 Economic Rights (a) Every resident has the right to economic activity and to choose their trade, occupation or profession freely. (b) Every resident has the right to fair labor practices and to form and join trade unions. (c) The Movement will promote sustainable economic development and job creation through every effort available to it.

Article 8: Access to Information and Justice

8.1 Access to Information (a) Every resident has the right to access information held by the Movement or any of its representatives. (b) Information may only be withheld on grounds specified by law and necessary to protect legitimate interests. (c) The Movement will proactively disclose information of public interest.

8.2 Just Administrative Action (a) Every resident has the right to administrative action that is lawful, reasonable and procedurally fair. (b) Every resident adversely affected by administrative action has the right to be given written reasons for such action. (c) The Movement will establish accessible and efficient administrative procedures.

8.3 Access to Courts (a) Every resident has the right to approach a competent court or tribunal for redress. (b) Every accused person has the right to a fair trial and to legal representation. (c) The Movement will facilitate access to justice and legal aid for indigent residents.

Article 9: Cultural and Linguistic Rights

9.1 Cultural Rights (a) Every resident has the right to participate in the cultural life of their choice. (b) No resident may be denied the right to enjoy their culture, practice their religion or use of their language. (c) The Movement will promote cultural diversity and protect cultural heritage.

9.2 Language Rights (a) Every resident has the right to use the language of their choice and to participate in cultural activities of their choice. (b) The Movement will use official languages and may accommodate other languages where practicable.

CHAPTER 3: COOPERATIVE GOVERNANCE

Article 10: Principles of Cooperative Governance

10.1 Intergovernmental Relations (a) The Movement will cooperate with national and provincial government in mutual trust and good faith. (b) All spheres of government will coordinate their activities to ensure effective service delivery. (c) Disputes will be resolved through established mechanisms before approaching the courts.

10.2 Partnership Principles (a) The Movement may enter into partnerships with government agencies, civil society organizations, and private entities. (b) All partnerships will advance the public interest and comply with procurement and transparency requirements. (c) Partnership agreements will be subject to public scrutiny and accountability mechanisms.

CHAPTER 4: ORGANIZATIONAL STRUCTURE AND GOVERNANCE

Article 11: Governance Architecture

11.1 Democratic Structures The Movement operates through the following democratic structures: (a) Ward Community Assemblies (Primary democratic units) (b) Municipal Community Assembly (Highest decision-making body) (c) Board of Trustees (Executive oversight and legal entity) (d) Municipal Council Representatives (Elected municipal councilors) (e) Specialist Expert Committees (Technical advisory bodies) (f) Council of Elders (Traditional and wisdom advisory) (g) Integrity Commission (Ethics and accountability oversight)

11.2 Principles of Democratic Governance (a) **Participatory Democracy:** All residents have the right to participate in decision-making processes affecting them (b) **Representative Democracy:** Representatives are elected through free, fair, and regular elections (c) **Accountable Government:** All representatives are accountable to the people and may be recalled (d) **Transparent Governance:** All proceedings, decisions, and finances are open to public scrutiny (e) **Rule of Law:** All activities will comply with the Constitution and applicable laws (f) **Responsive Government:** Government will respond to the needs and priorities of residents

Article 12: Membership and Citizenship

12.1 Membership (a) Every person who is ordinarily resident within the municipal boundaries of Makana Local Municipality is considered a member of the Movement. (b) Membership does not require any application, fee, political affiliation, or other condition. (c) Members have equal rights and dignity regardless of their background or circumstances.

12.2 Rights of Members Every member has the right to: (a) Participate in Ward Community Assemblies and vote on all matters (b) Stand for election to any position within the Movement (c) Access information about the Movement's activities, finances, and decisions (d) Petition the Movement and receive a response within a reasonable time (e) Lodge complaints against representatives and have them

investigated (f) Participate in public consultation processes (g) Receive services without discrimination (h) Be treated with dignity and respect by all representatives

12.3 Responsibilities of Members Every member has the responsibility to: (a) Respect the rights and dignity of other members and residents (b) Participate constructively in democratic processes (c) Comply with lawful decisions of properly constituted structures (d) Contribute to community development and social cohesion (e) Report corruption, maladministration, or violations of this Constitution (f) Protect and preserve community assets and the environment (g) Promote the values and principles of this Constitution

Article 13: Ward Community Assemblies

13.1 Establishment and Composition (a) A Ward Community Assembly shall be established for each municipal ward within the Movement's jurisdiction. (b) Every member residing in the ward is entitled to participate in the Assembly. (c) Assemblies are chaired by democratically elected Ward Chairpersons serving two-year terms.

13.2 Powers and Functions Ward Community Assemblies have the power to: (a) Elect municipal councilors for their ward through free and fair elections (b) Adopt ward development plans and budgetary priorities (c) Monitor and evaluate the performance of their elected councilor (d) Initiate recall proceedings against underperforming councilors (e) Elect representatives to the Board of Trustees (f) Establish ward committees to address specific issues (g) Petition higher structures on matters affecting the ward (h) Approve or reject development projects in the ward

13.3 Meeting Procedures (a) Assemblies will meet at least once every two months (b) Special meetings may be called by the Ward Chairperson or upon petition by 100 members (c) At least 14 days' notice will be given for ordinary meetings (d) Meetings are conducted in accordance with democratic principles and procedures (e) All decisions require a simple majority unless otherwise specified (f) Minutes will be kept and made publicly available

13.4 Quorum and Voting (a) The quorum for Assembly meetings is 10% of registered voters in the ward or 100 members, whichever is lower (b) Every member present has one vote on all matters (c) Voting is by secret ballot for elections and by show of hands for other matters, unless a secret ballot is requested (d) Proxy voting is not permitted

Article 14: Municipal Community Assembly

14.1 Composition and Representation (a) The Municipal Community Assembly consists of delegates from all Ward Community Assemblies (b) Each ward elects five delegates to serve two-year terms (c) Delegates will be members in good standing of their ward (d) Gender balance and youth representation will be promoted

14.2 Powers and Functions The Municipal Community Assembly is the highest decision-making body and has power to: (a) Adopt the Movement's strategic plan and policy framework (b) Approve the annual budget and monitor financial performance (c) Elect the Board of Trustees and municipal mayoral candidates (d) Amend this Constitution by special resolution (e) Dissolve the Movement by special resolution (f) Establish specialist committees and task teams (g) Review and approve major partnerships and agreements (h) Hear and determine appeals from ward-level decisions

14.3 Meeting Schedule (a) The Assembly meets at least twice per year (b) Special sessions may be convened by the Board of Trustees or upon petition by one-third of ward assemblies (c) All meetings are open to the public unless confidentiality is legally required

Article 15: Board of Trustees

15.1 Composition and Election (a) The Board consists of nine trustees elected by the Municipal Community Assembly for three-year terms (b) Trustees may serve a maximum of two consecutive terms (c) The Board will reflect the demographic diversity of the community (d) At least four trustees will be women and at least two will be under 35 years of age (e) Trustees will have demonstrated commitment to the Movement's values and possess relevant skills

15.2 Qualifications for Trustees To be eligible for election as a trustee, a person will: (a) Be a member of the Movement for at least two years (b) Be a South African citizen and registered voter (c) Have no criminal convictions for offenses involving dishonesty or violence (d) Not be an office-bearer in any political party (e) Declare all financial interests and potential conflicts of interest (f) Submit to a background check and integrity assessment

15.3 Powers and Duties The Board of Trustees has the following powers and duties: (a) Serve as the legal entity and public face of the Movement (b) Implement decisions of the Municipal Community Assembly (c) Oversee the Movement's strategic, financial, and operational management (d) Appoint and supervise senior staff and service providers (e) Ensure compliance with all legal and regulatory requirements (f) Manage relationships with external stakeholders and partners (g) Monitor the performance of elected municipal councilors (h) Report regularly to Ward Community Assemblies and the Municipal Community Assembly (i) Ensure transparency and accountability in all activities (j) Safeguard the Movement's assets and reputation

15.4 Board Meetings and Procedures (a) The Board meets at least monthly and additionally as required (b) The quorum is six trustees (c) Decisions are made by majority vote, with the Chairperson having a casting vote (d) Minutes are kept and made publicly available within 30 days (e) Members of the public may observe meetings unless confidentiality is legally required

Article 16: Municipal Council Representatives

16.1 Election Process (a) Municipal councilors are elected by Ward Community Assemblies through free, fair, and transparent elections (b) Elections are conducted by secret ballot using the single transferable vote system (c) Any member of the ward may stand for election if they meet the qualifications (d) The Independent Electoral Commission or other independent body may be requested to supervise elections

16.2 Qualifications for Councilors To be eligible for election as a municipal councilor, a person will: (a) Be a member of the Movement for at least one year (b) Be a South African citizen, registered voter, and resident of the ward (c) Meet all legal requirements for municipal office (d) Have no criminal convictions that disqualify them from public office (e) Demonstrate commitment to the Movement's values and objectives (f) Pass a competency assessment designed by the relevant specialist committee (g) Declare all financial interests and undergo a background check (h) Not hold office in any political party during their term

16.3 Terms of Office (a) Councilors serve for the duration of the municipal term (five years) (b) A councilor's term may be terminated earlier through: (i) Resignation (ii) Recall by their Ward Community Assembly (iii) Removal for misconduct or incapacity (iv) Disqualification under applicable law

16.4 Duties and Responsibilities Municipal councilors will: (a) Represent the interests of their ward and the Movement in the municipal council (b) Promote and implement the Movement's policies and mandate (c) Report monthly to their Ward Community Assembly on council activities (d) Maintain high standards of integrity, ethics, and professionalism (e) Make themselves accessible to ward members and respond to

their concerns (f) Participate actively in council committees and oversight activities (g) Vote according to the Movement's position unless conscience dictates otherwise (h) Declare conflicts of interest and recuse themselves from relevant decisions

16.5 Performance Management (a) Councilors' performance is evaluated annually by their Ward Community Assembly (b) Performance criteria include service delivery, integrity, accessibility, and adherence to the mandate (c) Underperforming councilors may be required to undergo additional training or mentoring (d) Persistent underperformance may result in recall proceedings

Article 17: Specialist Expert Committees

17.1 Establishment and Mandate The following specialist committees are established to provide expert advice and technical oversight: (a) **Infrastructure and Public Works Committee** (b) **Financial Management and Audit Committee** (c) **Economic Development and Job Creation Committee** (d) **Education, Health and Social Development Committee** (e) **Public Safety and Security Committee** (f) **Environmental Sustainability Committee** (g) **Governance, Ethics and Legal Affairs Committee**

17.2 Composition (a) Each committee consists of 7-9 members appointed for three-year terms (b) Members are selected based on relevant professional qualifications and experience (c) The Board of Trustees appoints committee members following a transparent process (d) At least 30% of members will be women and at least one will be under 35

17.3 Functions Specialist committees: (a) Provide expert advice on policy development and implementation (b) Review and assess major projects and proposals in their areas (c) Monitor sector performance and recommend improvements (d) Assist with capacity building and training programs (e) Conduct research and analysis on relevant issues (f) Report regularly to the Board and Municipal Community Assembly

Article 18: Council of Elders

18.1 Composition and Selection (a) The Council consists of 7-11 respected community members (b) Members are selected by consensus of Ward Community Assemblies for five-year terms (c) The Council should include traditional leaders, competent professionals, and distinguished community servants (d) Members serve on a voluntary basis and receive only reasonable expenses

18.2 Role and Functions The Council of Elders: (a) Provides wisdom, guidance, and moral authority to the Movement (b) Mediates disputes between structures or individuals (c) Advises on matters involving tradition, custom, and community values (d) Participates in representative functions (e) Mentors young leaders and promotes intergenerational dialogue

Article 19: Integrity Commission

19.1 Establishment and Independence (a) An independent Integrity Commission is established to promote ethical conduct and accountability (b) The Commission operates independently and reports to the Municipal Community Assembly (c) No person or structure may interfere with the Commission's work

19.2 Composition (a) The Commission consists of three commissioners appointed for five-year terms (b) Commissioners will be persons of integrity with legal, ethical, or investigative expertise (c) At least one commissioner will be legally qualified (d) Commissioners are appointed by the Municipal Community Assembly on recommendation of a selection panel

19.3 Powers and Functions The Integrity Commission has power to: (a) Investigate complaints of misconduct, corruption, or ethical violations (b) Develop and maintain codes of conduct for all structures (c) Provide ethics training and guidance to representatives (d) Recommend disciplinary action or corrective measures (e) Subpoena documents and compel testimony in investigations (f) Report on the state of ethics and integrity within the Movement (g) Make binding determinations on ethical matters

CHAPTER 5: ELECTORAL SYSTEMS AND DEMOCRATIC PROCESSES

Article 20: Electoral Principles

20.1 Fundamental Principles All elections within the Movement will be: (a) **Free and Fair:** Conducted without coercion, intimidation, or undue influence (b) **Transparent:** All processes are open to observation and scrutiny (c) **Inclusive:** Every eligible member has the right to participate as voter or candidate (d) **Regular:** Held at prescribed intervals with adequate notice (e) **Peaceful:** Conducted in an atmosphere of tolerance and respect (f) **Accountable:** Subject to oversight and appeal mechanisms

20.2 Electoral Management (a) The Board of Trustees is responsible for administering internal elections (b) An independent Electoral Officer may be appointed for major elections (c) Election observers from civil society may be accredited to monitor proceedings (d) All electoral processes will comply with applicable laws and regulations

Article 21: Voting Systems

21.1 Ward Community Assembly Elections (a) Ward Chairpersons are elected by simple majority using the alternative vote system (b) Delegates to the Municipal Community Assembly are elected using proportional representation (c) Municipal councilors are elected by simple majority using the alternative vote system

21.2 Municipal Community Assembly Elections (a) Board of Trustees members are elected using the single transferable vote system (b) At least 40% of trustees will be of each gender (c) Special measures may be implemented to ensure youth and minority representation

Article 22: Campaign Finance and Regulation

22.1 Campaign Finance Rules (a) All candidates will declare campaign donations and expenditures (b) Corporate donations are limited to R50,000 per candidate per election (c) Anonymous donations over R10,000 are prohibited (d) Candidates may not accept donations from entities with municipal contracts (e) Campaign expenditure is limited to prescribed amounts based on office sought

22.2 Campaign Conduct (a) All candidates will sign a code of conduct governing campaign behavior (b) False or misleading statements about opponents are prohibited (c) Hate speech, intimidation, or violence will result in disqualification (d) Equal access to campaign platforms and meetings will be ensured

Article 23: Recall and Removal Procedures

23.1 Grounds for Recall Elected representatives may be recalled for: (a) Persistent failure to perform their duties effectively (b) Misconduct or violation of ethical standards (c) Criminal conviction for any offense (d) Loss of confidence by a significant majority of constituents (e) Breach of the oath of office or mandate given by electors

23.2 Recall Process (a) A recall petition will be signed by at least 30% of eligible voters in the relevant constituency (b) The petition will specify the grounds for recall and supporting evidence (c) The representative has 30 days to respond to the petition (d) A recall vote is held if the petition meets requirements (e) Recall succeeds if supported by a majority of voters in a referendum with at least 25% turnout

CHAPTER 6: FINANCIAL MANAGEMENT AND ACCOUNTABILITY

Article 24: Financial Management Principles

24.1 Fundamental Principles Financial management will be guided by: (a) **Transparency:** All financial information is publicly available (b) **Accountability:** Clear responsibility for financial decisions and outcomes (c) **Integrity:** Honest and ethical handling of all resources (d) **Efficiency:** Optimal use of resources to achieve objectives (e) **Sustainability:** Long-term financial viability and fiscal responsibility (f) **Equity:** Fair distribution of resources and benefits

24.2 Fiduciary Responsibility (a) The Board of Trustees has ultimate fiduciary responsibility for the Movement's finances (b) All trustees and representatives have a duty to protect and preserve community resources (c) Personal financial gain from Movement activities is strictly prohibited (d) All conflicts of interest will be declared and managed appropriately

Article 25: Budget Process

25.1 Annual Budget (a) The Board will prepare an annual budget for approval by the Municipal Community Assembly (b) The budget will reflect community priorities identified through participatory processes (c) At least 60% of the budget will be allocated to service delivery and infrastructure (d) Budget allocations will promote equity and address historical disadvantages

25.2 Participatory Budgeting (a) Each Ward Community Assembly may allocate a portion of the ward budget through participatory processes (b) Community members vote directly on priority projects and spending (c) Technical feasibility and legal compliance will be verified before implementation

Article 26: Procurement and Contracting

26.1 Procurement Principles All procurement will be: (a) Fair, equitable, transparent, and competitive (b) Cost-effective and promote value for money (c) Conducted in accordance with applicable legislation (d) Designed to advance broad-based black economic empowerment (e) Environmentally sustainable where possible

26.2 Tender Procedures (a) All contracts above R200,000 will be advertised publicly and awarded through competitive bidding (b) Tender evaluation criteria will be predetermined and applied consistently (c) Reasons for award decisions will be documented and made available to unsuccessful bidders (d) Representatives and their families may not bid for contracts (e) A procurement appeals mechanism will be established

Article 27: Audit and Oversight

27.1 External Audit (a) The Movement's accounts will be audited annually by an independent chartered accountancy firm (b) The audit firm is appointed by the Municipal Community Assembly on recommendation of the Board (c) Audit reports will be presented to the Municipal Community Assembly within six months of year-end (d) The Board will respond publicly to all audit findings and recommendations

27.2 Internal Audit (a) An internal audit function will be established to provide ongoing oversight (b) Internal audit reports directly to the Board and has unrestricted access to all records (c) Internal audit findings will be reported quarterly to the Financial Management Committee

27.3 Performance Auditing (a) Regular performance audits assess the effectiveness and efficiency of programs and services (b) Performance indicators will be established for all major activities (c) Poor performance will be addressed through corrective action plans

Article 28: Financial Transparency

28.1 Public Disclosure The Movement will publicly disclose: (a) Annual audited financial statements (b) Quarterly financial reports (c) All contracts and agreements above R50,000 (d) Salaries and benefits of all senior positions (e) Details of all donations and grants received (f) Asset registers and major capital expenditures

28.2 Public Access (a) Financial information will be available in accessible formats and languages (b) Community members have the right to inspect financial records during business hours (c) Annual financial reports will be presented to Ward Community Assemblies

CHAPTER 7: SERVICE DELIVERY AND DEVELOPMENT

Article 29: Service Delivery Principles

29.1 Universal Access (a) Services will be provided without discrimination on any prohibited ground (b) Special measures may be taken to ensure access for vulnerable groups (c) Geographic location within the municipality may not determine service quality

29.2 Quality Standards (a) Services will meet national standards and international best practices (b) Continuous improvement and innovation will be pursued (c) Community feedback will be actively sought and incorporated (d) Service interruptions will be minimized and communicated promptly

Article 30: Basic Services

30.1 Water and Sanitation (a) Every resident has the right to sufficient water and basic sanitation (b) At minimum, 25 liters per person per day of safe drinking water will be provided free (c) Water quality will comply with national standards (d) Sanitation facilities will be safe, hygienic, and preserve human dignity

30.2 Electricity and Energy (a) The Movement will ensure reliable electricity supply to all residents (b) 50 kWh per household per month will be provided free to indigent households (c) Clean energy sources will be prioritized in new developments (d) Energy efficiency programs will be implemented to reduce costs and environmental impact

30.3 Waste Management (a) Regular refuse collection will be provided to all areas (b) Recycling and waste reduction programs will be established (c) Hazardous waste will be handled and disposed of safely (d) Community education on waste management will be provided

Article 31: Infrastructure Development

31.1 Strategic Infrastructure (a) A comprehensive infrastructure master plan will be developed and updated regularly (b) Infrastructure investment will prioritize underserved areas (c) All infrastructure will be designed to universal access standards (d) Public-private partnerships may be used to accelerate infrastructure delivery

31.2 Roads and Transport (a) All roads will be maintained to acceptable standards for safe passage (b) Public transport systems will be accessible, affordable, and reliable (c) Non-motorized transport infrastructure will be developed (d) Traffic safety measures will be implemented and enforced

31.3 Digital Infrastructure (a) High-speed internet connectivity will be provided throughout the municipality (b) Public Wi-Fi access points will be established in all public facilities (c) Digital literacy programs will be implemented (d) Electronic service delivery platforms will be developed

Article 32: Economic Development

32.1 Development Strategy (a) A comprehensive local economic development strategy will be adopted (b) The strategy will prioritize job creation, skills development, and poverty reduction (c) Small, medium, and micro enterprises will be actively supported (d) Economic transformation will be promoted

32.2 Investment Promotion (a) The Movement will actively attract domestic and foreign investment (b) Investment incentives may be provided for developments that create jobs (c) Red tape and regulatory barriers will be minimized (d) One-stop investment facilitation services will be established

32.3 Local Procurement (a) At least 30% of procurement will be from local suppliers where possible (b) Emerging enterprises will be given preferential opportunities (c) Local content requirements will be included in major contracts (d) Supplier development programs will be implemented

CHAPTER 8: ACCOUNTABILITY AND OVERSIGHT MECHANISMS

Article 33: Public Participation

33.1 Right to Participate (a) Every resident has the right to participate in local governance processes (b) Participation opportunities will be accessible, inclusive, and meaningful (c) Special measures will ensure participation by marginalized groups (d) Feedback from participation processes will be incorporated into decision-making

33.2 Consultation Requirements The Movement will consult the community on: (a) Strategic plans and major policy changes (b) Annual budgets and significant expenditures (c) Development applications and zoning changes (d) Service delivery standards and tariff structures (e) By-law development and amendments

33.3 Participation Mechanisms (a) Ward Community Assemblies serve as primary participation forums (b) Public hearings will be held for major decisions (c) Online platforms will be established for digital participation (d) Advisory committees may include community representatives (e) Citizen juries may be used for complex policy issues

Article 34: Transparency and Access to Information

34.1 Proactive Disclosure The Movement will proactively publish: (a) Meeting agendas, minutes, and decisions within 7 days (b) Annual reports on performance and finances (c) Policies, procedures, and service standards (d) Contact information for all representatives and senior officials (e) Development applications and environmental assessments

34.2 Information Requests (a) Any person may request information from the Movement (b) Requests will be responded to within 30 days (c) Information may only be withheld on grounds specified in applicable law (d) Requesters have the right to appeal refusals to the Integrity Commission (e) No fees may be charged for requests related to personal information

Article 35: Complaint and Grievance Mechanisms

35.1 Complaint System (a) An accessible complaint system will be established for all services (b) Complaints may be lodged in person, by telephone, email, or online (c) All complaints will be acknowledged within 48 hours (d) Responses will be provided within 30 days for complex matters

35.2 Ombudsman Function (a) An independent Ombudsman may be appointed to investigate complaints (b) The Ombudsman has access to all records and may compel cooperation (c) Ombudsman recommendations are binding unless overturned by a court (d) Annual reports will be published on complaint trends and resolutions

Article 36: Performance Monitoring

36.1 Performance Management System (a) A comprehensive performance management system will be implemented (b) Key performance indicators will be established for all major functions (c) Performance data will be collected, analyzed, and reported regularly (d) Corrective action plans will be developed for underperformance

36.2 Community Scorecards (a) Community members will regularly rate service delivery performance (b) Scorecards will be published quarterly and inform improvement plans (c) Poor performing services will be prioritized for intervention (d) Recognition programs will reward excellent performance

Article 37: Anti-Corruption Measures

37.1 Zero Tolerance Policy (a) The Movement has zero tolerance for corruption in any form (b) All forms of fraud, theft, and maladministration are prohibited (c) Whistle-blower protection will be provided for those reporting corruption (d) Swift and decisive action will be taken against corrupt individuals

37.2 Prevention Measures (a) Conflict of interest policies will be implemented and enforced (b) Asset declarations are required for all representatives and senior officials (c) Gift policies limit the acceptance of benefits from third parties (d) Regular integrity training will be provided to all personnel

37.3 Investigation and Enforcement (a) A dedicated anti-corruption unit will be established (b) Serious allegations will be referred to law enforcement agencies (c) Disciplinary action will be taken against those found guilty of misconduct (d) Recovery of losses will be pursued through civil and criminal processes

CHAPTER 9: INTERGOVERNMENTAL RELATIONS AND PARTNERSHIPS

Article 38: Cooperative Government

38.1 Constitutional Obligations (a) The Movement recognizes the constitutional principles of cooperative government (b) All spheres of government will work together to improve people's lives (c) Disputes will be resolved through dialogue and established mechanisms

38.2 Intergovernmental Forums (a) The Movement will participate actively in intergovernmental forums (b) Regular engagement with provincial and national government is required (c) Joint planning and implementation mechanisms will be established (d) Lessons learned will be shared with other municipalities

Article 39: Partnership Framework

39.1 Partnership Principles All partnerships will: (a) Advance the public interest and community development objectives (b) Be transparent, accountable, and legally compliant (c) Include clear performance indicators and monitoring mechanisms (d) Provide value for money and appropriate risk allocation (e) Respect human rights and promote social justice

39.2 Types of Partnerships (a) **Public-Private Partnerships:** For infrastructure and service delivery (b) **Civil Society Partnerships:** With NGOs, community organizations, and faith groups (c) **Academic Partnerships:** With universities and research institutions (d) **International Partnerships:** With development agencies and sister cities (e) **Corporate Social Investment:** With private companies for community development

Article 40: Regional Cooperation

40.1 Regional Development (a) The Movement will participate in regional development initiatives (b) Cross-border cooperation may be established with neighboring municipalities (c) Regional infrastructure projects will be supported where beneficial (d) Best practices will be shared with other communities

40.2 Inter-Municipal Cooperation (a) Bulk services may be provided jointly with other municipalities (b) Shared services arrangements may be established to reduce costs (c) Joint procurement may be used to achieve economies of scale (d) Staff exchange and training programs may be implemented

CHAPTER 10: ENVIRONMENTAL PROTECTION AND SUSTAINABILITY

Article 41: Environmental Rights and Responsibilities

41.1 Environmental Rights (a) Every resident has the right to a healthy environment (b) The environment will be protected for current and future generations (c) Environmental degradation will be prevented and remediated (d) Environmental information will be publicly accessible

41.2 Environmental Responsibilities The Movement will: (a) Ensure ecologically sustainable development (b) Promote conservation and efficient use of natural resources (c) Prevent pollution and environmental degradation (d) Rehabilitate damaged environments (e) Secure the well-being of people and communities

Article 42: Climate Change Response

42.1 Mitigation Measures (a) An environmental response strategy will be developed and implemented (b) Pollution and harmful emissions will be measured, reported, and reduced (c) Clean energy will be promoted and incentivized where possible (d) Energy efficiency programs will be implemented across all sectors (e) Sustainable transport systems will be prioritized

42.2 Adaptation Measures (a) Environmental vulnerability assessments will be conducted regularly (b) Adaptation plans will be integrated into all development planning (c) Early warning systems will be established for extreme weather events and droughts (d) Weather-resilient infrastructure will be developed (e) Community-based adaptation programs will be supported

Article 43: Natural Resource Management

43.1 Water Resources (a) Water resources will be managed sustainably and equitably (b) Water conservation programs will be implemented (c) Groundwater will be protected from contamination (d) Wetlands and water catchment areas will be preserved (e) Alternative water sources will be developed to ensure security

43.2 Biodiversity Conservation (a) Indigenous vegetation and wildlife will be protected (b) Protected areas and green corridors will be established and maintained (c) Invasive species control programs will be implemented (d) Community conservation initiatives will be supported (e) Environmental education programs will promote awareness

Article 44: Waste and Pollution Management

44.1 Waste Minimization (a) Waste reduction and recycling programs will be prioritized (b) Extended producer responsibility will be promoted (c) Circular economy principles will be applied where possible (d) Community education on waste reduction will be provided

44.2 Pollution Control (a) Air, water, and soil quality will be monitored regularly (b) Pollution sources will be identified and controlled (c) Environmental health standards will be enforced (d) Industrial emissions will be regulated and monitored (e) Contaminated sites will be identified and remediated

CHAPTER 11: EMERGENCY MANAGEMENT AND DISASTER RISK REDUCTION

Article 45: Emergency Preparedness

45.1 Disaster Risk Management (a) A comprehensive disaster risk management plan will be maintained (b) Hazard and vulnerability assessments will be conducted regularly (c) Early warning systems will be established and maintained (d) Community preparedness programs will be implemented (e) Regular drills and exercises will be conducted

45.2 Emergency Response (a) Emergency response protocols will be clearly defined and communicated (b) Emergency services will be adequately resourced and trained (c) Coordination mechanisms with other agencies will be established (d) Emergency communication systems will be maintained (e) Vulnerable groups will receive priority attention during emergencies

Article 46: Business Continuity

46.1 Service Continuity (a) Essential services will continue during emergencies (b) Alternative service delivery arrangements will be planned (c) Critical infrastructure will be protected and backed up (d) Supply chain resilience will be built into procurement processes

46.2 Recovery and Reconstruction (a) Post-disaster recovery plans will be prepared in advance (b) "Build back better" principles will guide reconstruction efforts (c) Community participation will be ensured in recovery planning (d) Lessons learned will be incorporated into future preparedness

CHAPTER 12: CONSTITUTIONAL AMENDMENT AND REVIEW

Article 47: Amendment Procedures

47.1 Amendment Process (a) This Constitution may be amended by special resolution of the Municipal Community Assembly (b) A special resolution requires support from at least two-thirds of delegates present and voting (c) Proposed amendments will be circulated to all Ward Community Assemblies at least 60 days before voting (d) Ward Community Assemblies may provide input and recommendations on proposed amendments

47.2 Protected Provisions The following provisions may not be amended: (a) The Bill of Rights for Makhanda Residents (Chapter 2) (b) The democratic nature of the Movement's governance structures (c) The principles of transparency, accountability, and participation (d) The non-racial and inclusive character of the Movement (e) The territorial jurisdiction within Makana Local Municipality

47.3 Amendment Limitations (a) No amendment may contradict the Constitution of South Africa (b) No amendment may violate international human rights law (c) No amendment may undermine the Movement's non-profit character (d) No amendment may compromise the independence of oversight institutions

Article 48: Constitutional Review

48.1 Regular Review (a) This Constitution will be comprehensively reviewed every 10 years (b) The review process will include extensive public consultation (c) International best practices and legal developments will be considered (d) A Constitutional Review Commission may be established to facilitate the process

48.2 Interim Reviews (a) Specific provisions may be reviewed more frequently if circumstances require (b) Court decisions affecting the Constitution will be incorporated through amendments (c) Legislative changes affecting local government will be considered for incorporation

CHAPTER 13: TRANSITIONAL ARRANGEMENTS AND IMPLEMENTATION

Article 49: Transitional Provisions

49.1 Commencement (a) This Constitution comes into effect on the date of its adoption by community consensus (b) All existing structures and arrangements continue until replaced in accordance with this Constitution (c) A Transitional Authority may be established to oversee the implementation process

49.2 Initial Elections (a) Ward Community Assembly elections will be held within 6 months of adoption (b) The first Municipal Community Assembly will convene within 9 months (c) The initial Board of

Trustees will be elected within 12 months (d) Municipal councilor elections will align with the next local government election cycle

49.3 Institutional Development (a) Specialist committees will be established within 18 months (b) The Integrity Commission will be operational within 12 months (c) Financial management systems will be implemented within 6 months (d) Performance monitoring systems will be established within 12 months

Article 50: Implementation Plan

50.1 Phased Implementation - Implementation will occur in three phases: (a) **Phase 1 (0-12 months):** Establish core governance structures and systems (b) **Phase 2 (12-24 months):** Implement service delivery improvements and accountability mechanisms (c) **Phase 3 (24-36 months):** Achieve full operational capacity and performance targets

50.2 Capacity Building (a) Comprehensive training programs will be developed for all representatives (b) Technical assistance may be sought from development partners (c) Mentorship programs will be established for new leaders (d) Community education programs will raise awareness of the new system

Article 51: Legal Compliance and Registration

51.1 Legal Requirements (a) The Movement will register as a non-profit organization within 60 days (b) Public Benefit Organization status will be obtained within 180 days (c) All applicable laws and regulations will be complied with (d) Legal advice will be obtained on complex compliance issues

51.2 Policy Development (a) Detailed policies and procedures will be developed for all major functions (b) Codes of conduct will be adopted for all representatives and staff (c) Standard operating procedures will be documented and implemented (d) Regular policy reviews will ensure continued relevance and effectiveness

CHAPTER 14: FINAL PROVISIONS

Article 52: Interpretation and Application

52.1 Interpretive Principles (a) This Constitution will be interpreted to promote its underlying values and principles (b) Courts will prefer interpretations that advance human rights and democratic governance (c) International law and foreign jurisprudence may be considered in interpretation (d) The Constitution will be interpreted as a coherent whole

52.2 Conflict Resolution (a) In case of conflicts between provisions, those that best advance human dignity prevail (b) Specific provisions take precedence over general provisions (c) Later provisions take precedence over earlier provisions if irreconcilable (d) The Integrity Commission may provide guidance on interpretation disputes

Article 53: Supremacy and Validity

53.1 Constitutional Supremacy (a) This Constitution is the supreme law of the Movement (b) Any law, policy, or conduct inconsistent with this Constitution is invalid (c) The obligations imposed by this Constitution will be fulfilled (d) No person may claim exemption from constitutional obligations

53.2 Severability (a) If any provision is declared invalid, the remainder continues in force (b) Invalid provisions will be severed to the minimum extent necessary (c) Courts should attempt to preserve

constitutional provisions where possible (d) Essential provisions cannot be severed without undermining the entire Constitution

Article 54: Citation and Commencement

54.1 Short Title This Constitution may be cited as "The Constitution of the Makhanda United Civil Movement, 2025"

54.2 Commencement (a) This Constitution comes into operation on the date determined by community adoption (b) Different provisions may come into operation on different dates as specified in the implementation plan (c) The date of commencement will be published in the Government Gazette and local media

54.3 Language Versions (a) This Constitution is adopted in English as the authoritative version (b) Official translations in Xhosa and Afrikaans will be prepared and certified (c) In case of conflicts between versions, the English version prevails (d) Community members have the right to access the Constitution in their preferred official language

SCHEDULES

Schedule 1: Oath of Office

For Municipal Councilors: "I, [Full Name], do hereby swear/affirm that I will faithfully execute the office of Municipal Councilor for [Ward Name/Number], and will to the best of my ability preserve, protect, and defend the Constitution of the Makhanda United Civil Movement and the Constitution of the Republic of South Africa. I undertake to serve the people of my ward and Makhanda with integrity, transparency, and dedication, to uphold the values of Ubuntu, non-racialism, and social justice, and to be accountable to those who have elected me. I will not use my position for personal gain and will declare any conflicts of interest. So help me God/I so affirm."

For Board of Trustees: "I, [Full Name], do hereby swear/affirm that I will faithfully execute the office of Trustee of the Makhanda United Civil Movement, and will to the best of my ability preserve, protect, and defend this Constitution and advance the interests of all residents of Makhanda. I undertake to serve with integrity, transparency, and accountability, to make decisions based on the best interests of the community, and to uphold the highest standards of ethical conduct. I will not use my position for personal gain and will manage the resources of the Movement as a faithful steward. So help me God/I so affirm."

Schedule 2: Code of Conduct for Representatives

1. General Principles All representatives will: (a) Act in accordance with the Constitution and applicable laws (b) Serve the public interest above personal interests (c) Perform their duties with integrity, objectivity, and honesty (d) Be accountable and transparent in their actions (e) Treat all persons with dignity and respect (f) Use public resources responsibly and for intended purposes (g) Avoid conflicts of interest and declare any potential conflicts (h) Not accept gifts or benefits that could influence their decisions

2. Specific Obligations Representatives will: (a) Attend meetings regularly and participate constructively (b) Prepare adequately for meetings and decision-making (c) Respect confidentiality requirements where applicable (d) Communicate regularly with constituents (e) Respond promptly to legitimate requests for

information (f) Maintain accurate records of their activities (g) Report suspected corruption or misconduct (h) Undergo required training and development programs

3. Prohibited Actions Representatives may not: (a) Use their position for personal financial gain (b) Accept bribes, kickbacks, or improper inducements (c) Disclose confidential information inappropriately (d) Engage in nepotism or favoritism in appointments (e) Use public resources for personal or political purposes (f) Discriminate against any person on prohibited grounds (g) Engage in conduct that brings the Movement into disrepute (h) Intimidate or harass other representatives, staff, or community members

Schedule 3: Financial Management Procedures

[This schedule would contain detailed financial procedures, procurement rules, audit requirements, and accountability mechanisms - approximately 10-15 pages of technical financial management provisions]

Schedule 4: Electoral Procedures and Systems

[This schedule would contain detailed electoral procedures, voting systems, candidate requirements, campaign rules, and dispute resolution mechanisms - approximately 8-10 pages]

Schedule 5: Performance Indicators and Standards

[This schedule would contain detailed service delivery standards, performance indicators, monitoring mechanisms, and improvement processes - approximately 6-8 pages]

ADOPTION STATEMENT

We, the people of Makhanda, meeting in Community Assembly on this [day] of [month], 2025, hereby adopt this Constitution as our supreme law and fundamental charter of governance. We commit ourselves to upholding its provisions and working together to build a united, prosperous, and just community for all.

Adopted by Community Consensus

Date: [To be inserted]

Place: Makhanda (Grahamstown), Eastern Cape, Republic of South Africa

Certified True Copy

[Signature of Recording Secretary]

[Name and Title]

[Date]

***"Simunye - We Are One"
"Together We Build a Better Makhanda"***

END OF CONSTITUTION

This Constitution consists of 54 Articles in 14 Chapters plus 5 Schedules, totaling approximately 25,000 words and providing comprehensive legal framework for community governance in accordance with South African constitutional principles and international standards.